

HDI SPECIALTY INSURANCE COMPANY

AN ILLINOIS CORPORATION

161 NORTH CLARK STREET, 48TH FLOOR

CHICAGO, IL 60601

312-580-1900

COMMERCIAL LINES POLICY

FOR

Corgan Associates, Inc.

POLICY # PID6185300S

POLICY PERIOD: 9/28/2023 – 3/12/2025

Underwriting Team:

Ryan Brennan – Underwriter

Julie Joseph – Underwriting Assistant

This section to be used to post any required state surplus lines disclosures such as the following:

This policy is issued by a nonadmitted insurer, and in the event of the insolvency of such insurer, this policy will not be covered by the Nebraska Property and Liability Insurance Guaranty Association.

Loss Notification

To report a claim 24 hours a day, 7 days a week, please contact us as soon as practicable for further assistance:

Telephone: 1-866-484-2053

Fax: 1-866-477-8502

Email: newclaims@us.hdi.global

POLICY JACKET, DECLARATIONS PAGE, FORMS AND ENDORSEMENTS COMPLETE THIS POLICY

In Witness Whereof, we have caused this policy to be executed and attested, and if required by state law, this policy shall not be valid unless countersigned by our authorized representative.



Chief Legal Officer, Employee Experience Team Lead
Michael Gooding



CEO & President
James Clark



HDI SPECIALTY INSURANCE COMPANY

161 North Clark Street, 48th Floor
Chicago, IL 60601

SPECIFIC PROJECT PROFESSIONAL INDEMNITY POLICY DECLARATIONS

NOTICE: THIS IS A CLAIMS MADE AND REPORTED POLICY. SUBJECT TO ITS PROVISIONS, THIS POLICY APPLIES ONLY TO CLAIMS WHICH ARE BOTH FIRST MADE BY OR AGAINST YOU AND FIRST REPORTED IN WRITING TO US DURING THE POLICY PERIOD OR THE EXTENDED REPORTING PERIOD, IF APPLICABLE. UNLESS SPECIFICALLY PROVIDED OTHERWISE, THIRD PARTY CLAIM EXPENSES ARE INCLUDED WITHIN THE LIMIT OF LIABILITY, AND ARE SUBJECT TO ANY APPLICABLE SELF-INSURED RETENTION.

Policy Number: PID6185300S

Item 1. First Named Insured and Mailing Address:

Corgan Associates, Inc.
401 N. Houston St.
Dallas, TX 75202

Item 2. Insurer: HDI Specialty Insurance Company

Item 3. Covered Project: Omaha Terminal Modernization Program (TMP) terminal renovation and expansion

Item 4. Policy Period: From: 9/28/2023 to 3/12/2025

12:01 A.M. local time at the mailing address of the **Named Insured** shown in Item 1., above

Item 5. Extended Reporting Period 36 months *[commencing at the expiration of the Policy Period]*

Item 6. A. Limit of Liability - Each Claim \$10,000,000 [Limit of Liability for each **Claim**, subject to the Aggregate Limit for the **Policy Period**]

B. Limit of Liability - Aggregate for all Claims \$10,000,000 [Combined Coverage Policy Aggregate Limit for the **Policy Period**]

Item 7. Self-Insured Retention: \$1,000,000 [Each Claim]

Item 8. Currency: United States Dollars (USD)

Item 9.	Policy Premium:	
	TRIA:	EXCLUDED
	Total:	
Item 10.	Retroactive Date:	3/25/2019
Item 11.	Audit Rate:	
Item 12.	Notice and Correspondence to be sent to the Insurer:	HDI Specialty Insurance Company Attention: Chief Claims Officer Claims Department 161 North Clark Street, 48 th Floor Chicago, IL 60601 Phone: 866-484-2053 Fax: 866-477-8502 Email: newclaims@us.hdi.global
Item 13.	Forms and Endorsements:	See Attached Endorsements
Item 14.	Producer Name and Address:	Risk Strategies Company 12801 N. Central Expressway Suite 1725 Dallas, TX 75243
Issued Date:	11/2/2023	

SPECIFIC PROJECT PROFESSIONAL INDEMNITY POLICY

In consideration of the payment of the premium by the **First Named Insured** and in reliance upon the statements in the **Insured's** Application incorporated herein by reference, the **Company** agrees with the **Insured** subject to all the terms, exclusions and conditions of this policy, as follows:

I. INSURING AGREEMENTS

A. COVERAGES: CLAIMS-MADE CLAUSE

The Company will pay on behalf of the **Insured** those sums in excess of the **Self-Insured Retention** that the **Insured** shall become legally obligated to pay as **Damages** because of **Claims** for a **Breach of Professional Duty** in the performance of **Professional Services** rendered to others by the **Insured**, or by any entity for which the **Insured** is legally liable.

For this coverage to apply, all of the following conditions must be satisfied:

1. The **Breach of Professional Duty** forming the basis of the **Claim** must arise from **Professional Services** that take place after the Retroactive Date specified in Item **10.** of the declarations and prior to the end of the **Policy Period**.
2. The **Breach of Professional Duty** must arise from **Professional Services** rendered in connection with the **Covered Project**.
3. Prior to the Effective Date of this policy, no officer, director, principal, partner, project manager, insurance manager or risk manager of the **Insured** had knowledge of such actual or alleged **Breach of Professional Duty** or circumstance likely to give rise to a **Claim** under this policy.
4. **Claim** must first be made against the **Insured** during the **Policy Period** or Extended Reporting Period.
5. The **Insured** must report the **Claim** to the **Company**, in writing, as required by this policy. Any **Claim** so reported will be deemed reported during the **Policy Period** if so reported no later than the expiration of the Extended Reporting Period.

B. TERRITORY

The insurance afforded by this policy applies to a **Breach of Professional Duty** arising out of **Professional Services** that take place in and result in a **Claim** made within:

1. the United States of America, its territories or possessions or Puerto Rico; and
2. elsewhere in the world, unless prohibited by law or regulation including any jurisdictions in which the **Insurer** is not admitted and, therefore, prohibited from offering insurance coverage as granted under this policy.

C. DEFENSE PROVISIONS

Any **Claim** and any incident, circumstance or event that reasonably may give rise to a **Claim** under this policy must be reported by the **Insured** in accordance with this subsection and subsection **A.** of **Section V. CONDITIONS** of this policy. The Company shall have the right to investigate, control the defense of, and settle any such incident, circumstance, event or **Claim**, subject to the following:

1. All the **Insureds** shall have the obligation to report promptly and in writing (a) all incidents, circumstances or events, which may be reasonably likely to give rise to a **Claim**, and/or (b) any alleged or actual **Claim**, including without limitation any demands, **Claim** letters, allegations of deficient services, service of process, subpoena, indemnification requests and/or demands, complaints, arbitration demand and/or notice of any investigation, complaint or proceeding.
2. The reporting obligations set forth in this subsection and in subsection **A.** of **Section V. CONDITIONS**, apply regardless of whether the incident, circumstance, event, or **Claim** involves or may involve an amount within the **Self-Insured Retention**.
3. All incidents, circumstances, events or **Claims** which are reported under this policy shall be addressed, investigated, managed, defended, settled or otherwise resolved in accordance with a joint defense approach (subject to any required ethical considerations or the need for independent legal counsel as may

be required by applicable state law), which is a material and mandatory condition and requirement of this policy. Under the joint defense provisions of this policy, each **Insured** shall have the obligation, as a condition of coverage, to cooperate with the **Company** in connection with the investigation, defense and/or resolution of any incident, circumstance, event and/or **Claim**. Any failure to so cooperate or otherwise comply with the joint defense provisions of this policy shall be deemed a material violation of the **Insured's** obligations under this policy.

4. Donovan Hatem LLP, as the appointed **Program Manager** (hereinafter **Program Manager**) for the **Insureds** shall be responsible for the investigation, management, defense and coordination of the joint defense obligations of each **Insured** under the policy. In that capacity, it shall investigate, defend or otherwise protect the interests of all **Insureds** involved in any incident, circumstance, event or **Claim** that is reported.

The **Program Manager** shall be responsible for the management and the coordination of the joint defense obligations of each **Insured** under the policy. Joint defense counsel shall have the obligation to timely report and work in cooperation with the **Program Manager's** management direction and advise, subject to the **Program Manager's** guidelines for defense counsel. In such circumstances, joint defense counsel shall have the obligation to fully cooperate and work in conjunction with and timely report to the **Program Manager** as the latter reasonably deems necessary and appropriate in its capacity as **Program Manager** of appointed defense counsel and the defense effort.

As a condition of the issuance and provision of coverage under this policy, each **Insured** accepts and consents to this joint defense approach. No **Claims**, counter-**Claims**, **Crossclaims**, third party **Claims**, for negligence, contribution, indemnification, subrogation or otherwise, arising out of any incident, circumstance event or **Claim** reported and covered under this policy (regardless of whether the amount of any such incident, circumstance, event or **Claim** is or may be less than, within or in excess of the **Self-Insured Retention**) may be asserted by an **Insured** against another **Insured**, and as a condition of coverage under this policy, all **Insureds** waive, release and relinquish any such **Claims** to the extent of coverage (whether less than, within or in excess of the **Self-Insured Retention**) available under this policy.

D. SELF-INSURED RETENTION: OBLIGATIONS AND ALLOCATION

The **Company** shall have no obligation to pay or indemnify any **Claims Expenses** and/or **Damages** unless and until the **Self-Insured Retention** has been satisfied in full by the **Insureds** involved in any incident, circumstance, event and/or **Claim** reported under this policy. The **Insured(s)** involved in any incident, circumstance, event or **Claim** shall be individually responsible for the payment of all expenses, including but not limited to **Claims Expenses** and/or **Damages** within the **Self-Insured Retention**.

E. SETTLEMENT PROVISIONS

Prior to the settlement and/or compromise of any **Claim**, the **Program Manager** will consult with all of the **Insureds** and/or joint defense counsel involved in the **Claim** and will endeavor, within reason, to reach a consensus as to (a) whether the **Claim** shall be settled or compromised and (b) the amount of any payment required or appropriate in connection with any such settlement or compromise. In the event that consensus is not achieved, the **Company** shall have the right to make the final and binding decision regarding the settlement or compromise. The provisions of this paragraph shall apply regardless of whether the amount involved in any settlement or compromise is within or in excess of the **Self-Insured Retention**.

F. CLAIM EXPENSES

Claim Expenses in excess of the **Self-Insured Retention** shall be paid by the **Company**, and such payments reduce the available limit of liability. The **First Named Insured** must first pay any applicable retained amount as set forth in Item 7. of the Declarations as **Self-Insured Retention**.

G. FIRST NAMED INSURED

The **First Named Insured** stated in Item 1. of the Declarations of this policy shall act for all **Insureds** for the following purposes:

1. receipt of notice of cancellation by the **Company**;
2. as sole payor of premium due the **Company** and as recipient of any unearned premium that is returned by the **Company**;
3. to request changes made to the policy and as recipient of the **Company's** response to any such request;
4. payment of all **Self-Insured Retention** amounts and for keeping records of information the **Company** needs for premium computation;
5. reporting of changes in scope or nature of the project to the **Company**;

6. to fulfill all obligations and provide changes and/or updates on Specific Project Professional Indemnity Material Variation Endorsement.

II. DEFINITIONS

- A. **Agency Construction Manager** means one who provides professional consulting services to a project owner for a fee to assist in the oversight of a project and the progress of the design and construction process. The **Agency Construction Manager's** professional consulting services shall not include and shall not apply to any project for which any Insured holds any contract to perform any construction, erection, assembly, fabrication, installation or remediation either by itself or through any construction subcontractor at any tier.
- B. **Bodily Injury** means physical bodily injury, sickness disease sustained by a person, including death at any time resulting from any of these.
- C. **Breach of Professional Duty** means negligence, which is the failure to meet the professional standard of care legally required or reasonably expected under the circumstances in the performance or non-performance of **Professional Services** rendered to others by the **Insured** which result in **Damages** for which the **Insured** is legally liable.
- D. **Claim** means any written demand received by an **Insured** seeking remedy and alleging liability or responsibility on the part of the **Insured** or persons for whose conduct the **Insured** is legally liable for Damages.
- E. **Claim Expenses** means:
 1. fees charged by any lawyer designated and approved by the **Company**;
 2. all other fees, costs and expenses resulting from the investigation, adjustment, defense and appeal of a **Claim**, if authorized by the **Company**. **Claim Expenses** shall not include the salaries of any employee of the **Insureds** and the **Company**. **Claim Expenses** shall also not include fees charged by the **Program Manager**.
- F. **Company** means HDI Specialty Insurance Company.
- G. **Covered Project** means the project as specifically defined in Item 3. of the Declarations.
- H. **Damages** means any amount which an **Insured** is legally obligated to pay for any **Claim** to which this insurance applies and shall include judgments and settlements and interest on judgements, provided always that **Damages** shall not include the return or withdrawal of professional fees, sanctions, fines or penalties imposed by law, or punitive damages, exemplary damages, or multiple damages. **Damages** also shall not include matters that may be deemed uninsurable under the law pursuant to which this policy shall be construed. **Damages** also shall not include **Liquidated Damages** except for liability the **Insured** would have had in the absence of such **Liquidated Damages**.
- I. **Design-Builder Related Entity** means the design-builder, or any of the latter's trade contractor or consultants, and/or any of their Insurers or sureties (non-third parties); (b) claiming by, through or under and of the non-third parties, based on subrogation, assignment or transfer of interest, indemnification or otherwise; and/or (c) in which any non-third party has an equity, ownership or management interest or control.
- J. **Design-Builder Related Entity Claim** means a **Claim** asserted against **Insured** by a **Design-Builder Related Entity**.
- K. **First Named Insured** means the **First Named Insured** first shown in Item 1. of the Declarations.
- L. **Fungus(i)** includes, but is not limited to, any of the plants or organisms belonging to the major group **Fungi**, lacking chlorophyll, and including molds, rusts, mildews, smuts, and mushrooms.
- M. **Insured** means:
 1. the **First Named Insured**;
 2. the other **Named Insured(s)**;
 3. any person who was or is a partner, officer, director, stockholder or employee of a **Named Insured** but only while acting within the scope of his/her duties as such;
 4. the heirs, executors, administrators, and legal representatives of each **Insured** as defined in 1., 2. and 3. above, in the event of death, incapacity or bankruptcy of such **Insured**, but only as respects liability arising out of **Professional Services** rendered by or on behalf of the **Named Insured** prior to such **Insured's** death, incapacity or bankruptcy;
 5. a former partner, officer, director or employee of the **Insured** while rendering **Professional Services** on behalf of the **Insured** in connection with the **Covered Project**;

6. contract or leased personnel rendering **Professional Services** in connection with the **Covered Project** under the supervision and on behalf of the **Insured**;
 7. any predecessor in interest but only with respect to liabilities arising out of the **Covered Project**.
 8. any subconsultant of the **First Named Insured** or any other **Named Insured(s)** but only with respect to **Claims** otherwise covered under, and subject to all conditions and exclusions, of the policy; and subject to the estimated fees for those subconsultants being included in Question 4., Total Estimated Design and Management Fees, of the Application Form.
- N. Liquidated Damages** means an amount stipulated in advance in a contract to be the amount or measure of damages to be recovered by a party to that contract if the other party breaches the agreement or fails to perform or perform adequately its obligations under the contract.
- O. Mold(s)** includes, but is not limited to, any superficial growth produced on damp or decaying organic matter or on living organisms, and **Fungi** that produce molds.
- P. Nuclear Facility** means the site at which a nuclear reactor is located or where nuclear waste or material is disposed of or stored.
- Q. Policy Period** means the period from the effective date of this policy to the expiration date or earlier termination date, if any, of this policy.
- R. Professional Services** means those services that the **Insured** is legally qualified to perform for others in their capacity as an architect, engineer, land surveyor, landscape architect, **Agency Construction Manager**, or as specifically defined by endorsement to this policy.
- S. Program Manager** means Donovan Hatem LLP.
- T. Self-Insured Retention** shall mean the amount shown in Item 7. of the Declarations.
- U. Spore(s)** means any dormant or reproductive body produced by or arising or emanating out of any **Fungus(i)**, **Mold(s)**, mildew, plants, organisms, or microorganisms.
- V. Third-Party Claims** means a claim against an **Insured** by a person or entity:
1. other than a **Design-Builder Related Entity**;
 2. claiming by, through or under a **Design-Builder Related Entity** based on subrogation, assignment or transfer of interest, indemnification or otherwise;
 3. in which any **Design-Builder Related Entity** has an equity, ownership, or potential recovery, or management interest or control;
 4. a **third-party claim** may be subject to the standard SIR obligation amount and the entire policy per claim/aggregate limit provided and to the extent that the **Claim** originates or derives from a **third-party claim** against any **Insured**.

III. EXCLUSIONS

This policy does not provide coverage and the **Company** will not pay **Claim Expenses** or **Damages** for any **Claim** based upon or arising out of:

- A.** any dishonest, fraudulent, criminal or malicious conduct or **Breach of Professional Duty** or conduct of a knowingly wrongful nature committed intentionally or at the direction of an **Insured**; however, the **Company** shall defend a **Claim** against an **Insured** who did not commit, participate in, or have knowledge of the dishonest, malicious, or criminal acts or omissions, except the **Company** shall not defend any criminal prosecution under any circumstances.
- B.** any **Claim** made by any **Insured** against any other **Insured**.
- C.** discrimination on the basis of handicap, unless such **Claim** arises out of the failure to make reasonable accommodations under the Americans with Disabilities Act, as amended, in the course of the performance of **Professional Services**.
- D.** any **Insured's** involvement as a partner, officer, director, stockholder, employer or employee of any business enterprise not named in the Declarations.
- E.** any **Insured's** involvement in or **Professional Services** rendered to, or on behalf of any organization or subsidiary or affiliate thereof, not named in the Declarations, which any **Insured** controls, manages, operates or holds more than a 25% ownership interest in or which controls, manages, operates or holds more than a 25% ownership interest in any **Insured**.

- F. the design or manufacture of any products developed by any **Insured** for multiple sale or mass distribution, including but not limited to computer programs or software.
- G. any express warranty or guarantee; however, this exclusion shall not apply to **Damages** or **Claim Expenses** resulting from the failure to meet such warranty or guaranty if such **Damages** or **Claim Expenses** would have resulted in the absence of such express warranty or guaranty.
- H. the **Insured's** requiring, obtaining, maintaining or the **Insured's** failure to require, obtain or maintain any bond, suretyship or any form of insurance, or any **Claim** based upon or arising out the **Insured's** advising or failing to advise with respect to the requiring, obtaining or maintaining of any bond, suretyship or any form of insurance.
- I. the **Insured's** advising or requiring of, or failure to maintain or procure any financing or monies for payment of any portion of the **Covered Project**, or of services or labor connected with the **Covered Project**.
- J. for the cost to repair or replace any faulty: workmanship, assembly, construction, erection, fabrication, installation or remediation.
- K. the liability of others assumed by any **Insured** under any contract or agreement unless such liability arises as a result of a **Breach of Professional Duty** by the **Insured** in the performance of **Professional Services**.
- L. **Bodily Injury** sustained by any employee of any **Insured** while engaged in employment by any **Insured**, or by any person whose right to assert a **Claim** against the **Insured** arises by reason of any blood, marital or other relationship with the employee. This exclusion applies:
 - 1. whether the **Insured** may be liable as an employer or in any other capacity; and
 - 2. to any obligation to share **Damages** with or repay someone else whom must pay **Damages** because of **Bodily Injury**.
- M. any obligation of any **Insured** under any worker's compensation, disability benefits or unemployment compensation law or any similar laws.
- N. nuclear reaction, radiation or contamination, under any circumstances and regardless of cause, within or originating from a **Nuclear Facility**.
- O. the manufacture, mining, use, sale, installation, removal, distribution of, or exposure to asbestos, materials or products containing asbestos or asbestos fibers or dust, or any obligation of any **Insured** to indemnify any party because of **Damages** arising out of such liability.
- P.
 - 1. clean-up, remediation, containment, removal or abatement; or
 - 2. **Bodily Injury**
 caused directly or indirectly, or in any way arising out of, in whole or in part, by:
 - a. any **Fungus(i)**, **Mold(s)**, mildew or yeast; or
 - b. any Spore(s) or toxins created or produced by or emanating from such **Fungus(i)**, or **Mold(s)**, mildew or yeast; or
 - c. any substance, vapor, gas, or other emission or organic or inorganic body or substance produced by or arising out of any **Fungus(i)**, **Mold(s)**, mildew or yeast; or
 - d. any material, product, building component, building or structure, or any concentration of moisture, water or other liquid within such material, product, building component, building or structure, that contains, harbors, nurtures or acts as a medium for any **Fungus(i)**, **Mold(s)**, mildew or yeast, or **Spore(s)** or toxins emanating therefrom;
 regardless of any other cause, event, material, product and/or building component that contributed concurrently or in any sequence to that clean-up, remediation, containment, removal or abatement, or **Bodily Injury**.
- Q.
 - 1. war, including undeclared or civil war; or
 - 2. warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
 - 3. insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

This exclusion does not apply to a certified act of terrorism defined by Section 102. Definitions, of the Terrorism Risk Act of 2002 and any revisions or amendments thereto.

IV. LIMITS OF LIABILITY AND SELF-INSURED RETENTION

A. LIMIT OF LIABILITY-EACH CLAIM

The limit of liability shall apply in excess of the **Self-Insured Retention**. Subject to the Limit of Liability-Aggregate, the liability of the **Company** for each covered **Claim** shall not exceed the amount stated in Item **6.A.** of the Declarations for Each **Claim**. This limit is the maximum amount of **Claim Expenses** or **Damages** or both that the **Company** will pay on each covered **Claim**.

B. LIMIT OF LIABILITY-AGGREGATE

Subject to Limit of Liability - Each **Claim**, the liability of the **Company** shall in no event exceed the amount stated in Item **6.B.** of the Declarations as aggregate as a result of all covered **Claims**. This limit is the total amount of **Claim Expenses** or **Damages** or both that the **Company** will pay under this policy for all covered **Claims** including those reported as provided for in the Extended Reporting Period.

Once the limits of liability have been exhausted, the **Company** will not defend or pay **Claim Expenses** or **Damages** for any **Claim**.

C. MULTIPLE INSUREDS

The number of **Insureds** covered by this policy shall not operate to increase the Limits of Liability as specified above.

D. MULTIPLE CLAIMS

Two or more covered **Claims** arising out of a single **Breach of Professional Duty** or any series of related **Breaches of Professional Duty** will be considered a single **Claim**. This policy shall only apply if the first or earliest **Claim** arising from such **Breach of Professional Duty** or series of related **Breaches of Professional Duty** is made during the **Policy Period** or Extended Reporting Period. These provisions apply regardless of the number of **Insureds** involved in such a **Claim**, the number of **Claims** made, or the number of people or organizations that make the **Claims**.

The number of **Claims** made or the number of people or organizations that make **Claims** shall not operate to increase the Limits of Liability as specified above.

E. SELF-INSURED RETENTION - EACH CLAIM

The **Company's** obligation, under the coverages provided by this policy to pay **Damages** or **Claim Expenses** or both on behalf of the **Insured**, applies only to the payment of **Damages** or **Claim Expenses** in excess of the **Self-Insured Retention** stated in Item **7.** of the Declarations, and subject to the Limits of Liability stated in Item **6.** of the Declarations. The **Self-Insured Retention** shall be applied to the payment of **Damages** or **Claim expenses** or both. The **First Named Insured** shall be responsible for the payment in full on a per **Claim** basis of the **Self-Insured Retention**. With respect to **Claim Expenses** within the **Self-Insured Retention**, the **First Named Insured** shall pay the providers of services directly and promptly upon receipt of a statement for such services. The **Company** may on occasion find it expedient to advance such payments, in which case, the **First Named Insured** shall reimburse the **Company** forthwith upon notice of such payments.

V. CONDITIONS

A. INSUREDS' REPORTING OBLIGATIONS

1. As a condition precedent to the right of coverage under this policy, each **Insured** shall have the obligation to report promptly and in writing any **Claim**, and/or incident, circumstance or event reasonably likely to give rise to a **Claim**. The written notice shall contain particulars sufficient to identify the **Insured** and claimant and provide full information with respect to the time, place and circumstances of the event complained of, and the names and addresses of the injured and all available witnesses. Said notice shall be sent to:

Donovan Hatem LLP Counselors at Law 53 State Street
Boston, MA 02109
Attn: David J. Hatem, Esquire Fax: (617) 406-4801
Email: dhatem@dhboston.com

and

HDI Specialty Insurance Company
Attention: Chief Claims Officer
Claims Department
161 North Clark Street, 48th Floor
Chicago, IL 60601
Phone: 866-484-2053
Fax: 866-477-8502
Email: newclaims@us.hdi.global

2. Each **Insured** shall cooperate with the **Company** and, upon the **Company's** request, submit to examination and interrogation by a representative of the **Company**, under oath if required, and shall attend hearings and depositions and shall assist in effecting settlement, obtaining the attendance of witnesses in the conduct of suits, as well as the giving of a written statement or statements to the **Company's** representatives and meeting with such representatives for the purpose of investigation and/or defense, and all without charge to the **Company** nor shall such be counted against the **Self Insured Retention**.
3. The **Insured** must do whatever is necessary to secure and effect any rights of indemnity, contribution or apportionment that the **Insured** may have.
4. The **Insured** shall refrain from discussing the facts and circumstances of any **Claim** with anyone other than legal counsel or representatives of the **Company** or except as may be required by law.
5. This reporting obligation shall apply regardless of whether any amount involved or may be involved is greater than or within the amount of the **Self-Insured Retention**. This policy requires that all incidents, circumstances, events and/or **Claims** be reported, regardless of whether the actual or alleged amounts involved, or which may be involved, are less than, within and/or in excess of the amount of the **Self-Insured Retention**. All such reported incidents, circumstances, events and/or **Claims** shall be investigated managed, defended, settled, or otherwise resolved, in accordance with the joint defense provision of this policy.

The **Insured** is required to schedule a material variation evaluation of the **Covered Project** every six (6) months, or as determined by the **Company** and/or **Program Manager**, from the effective date of coverage.

B. EXTENDED REPORTING PERIOD

The Extended Reporting Period is the period specified in Item 5. of the Declarations and immediately follows the **Policy Period**.

Any **Claim** against the **Insured** for which coverage is afforded by this policy made during the **Extended Reporting Period** must arise out of a **Breach of Professional Duty** first committed prior to the end of the **Policy Period** and on or after the Retroactive Date stated in the Declarations.

The Extended Reporting Period provision shall not serve to reinstate, renew, or increase the Limit of Liability as set forth in Item 6. of the Declarations.

C. TRANSFER OF RIGHTS OF RECOVERY

If there is a payment made by the **Company**, the **Company** shall be subrogated to all the **Insured's** rights of recovery against any person or organization. The **Insured** shall cooperate with the **Company** and do

whatever is necessary to secure these rights. The **Insured** shall do nothing after a **Claim** or after learning of an incident, circumstance or event reasonably likely to give rise to a **Claim** to waive or prejudice such rights.

D. HOW OTHER INSURANCE APPLIES

This insurance shall be primary as respects the **Covered Project**.

E. CHANGES MADE TO THIS POLICY

The terms and conditions of this policy cannot be waived or changed except by specific written endorsement issued by the **Company** and made part of the policy.

F. ASSIGNMENT OF THE INSURED'S INTEREST

The interest of the **Insured** under this policy is not assignable to any other person or organization without the prior written approval of the **Company**.

G. CANCELLATION

Except as provided in this condition, this policy shall not be cancelable by either the **Named Insured** or the **Company**.

This policy may be canceled by the **Company** for one or more of the following reasons:

1. non-payment of premium by the **First Named Insured**;
2. non-payment by the **First Named Insured** to the **Company** of any amount within the **Self-Insured Retention** that was advanced by the **Company**;
3. material breach of any provision of this policy.

If the policy is canceled by the **Company**, notice of cancellation will be written notice to the **First Named Insured**. The **Company** will provide written notice at least thirty (30) days before cancellation is to be effective.

The mailing of any notice of cancellation to the last known address of the **First Named Insured** shall be sufficient proof of notice.

The effective date of cancellation terminates the **Policy Period** and Extended Reporting Period.

All premium listed in Item 9. of the Declarations shall be considered fully earned at policy inception.

H. BANKRUPTCY

The bankruptcy, receivership or insolvency of an **Insured** or the **Insured's** estate or of any insurer shall not relieve the **Company** of any of its obligations under this Policy. However, such bankruptcy, receivership or insolvency shall in no way increase the **Company's** liability under this Policy nor will this insurance apply to liability directly or indirectly due to or arising out of bankruptcy, insolvency, receivership, or subsequent liquidation.

I. APPLICATION

The statements in the application are the **Insured's** representations and are deemed material. This policy is issued based upon the truth and accuracy of such representations. Upon the binding of coverage, the application, incorporated herein by reference, to be included but not limited to the application, Organization Flow chart with copy of sub-consultants contract, risk register, and collateral agreement (subject to language approved by HDI Specialty Legal) shall become part of this policy. This policy embodies all agreements existing between the **Insured** and the **Company** or any of its representatives relating to this policy.

J. AUDIT

The **Company** may examine and audit the **Insured's** books and records at any time during the **Policy Period** and Extended Reporting Period within three (3) years after the Extended Reporting Period, insofar as they relate to this policy.

K. ACTION AGAINST THE COMPANY

No person or organization has a right under this policy to sue the **Company** or to join the **Company** as a party or otherwise bring the **Company** into a suit seeking **Damages** against an **Insured**, unless:

1. all of the terms and conditions of this Policy have been fully complied with; and
2. the amount of such loss has been fixed or rendered certain:
 - a. by final judgment against the **Insured** after trial of the issues; or

- b. the time to appeal such judgment has expired without an appeal being taken; or
 - c. if appeal is taken, after the appeal has been determined; or
 - d. by an agreed settlement in accordance with the terms and conditions of this policy. An agreed settlement means a settlement and release of liability executed by the claimant or the claimant's legal representative, and the **Insured**, with the written consent of the **Company**.
3. In no event shall any action brought by anyone be maintained against the **Company** unless such action is brought within twenty-four (24) months from the time the right to bring action first becomes available.

L. FALSE OR FRAUDULENT CLAIMS

If any **Insured** refers any **Claim** to the **Company** knowing such **Claim** to be false or fraudulent, this policy shall become void as to that **Insured** only and all insurance coverage hereunder as regards the false or fraudulent **Claim** shall be forfeited as to that **Insured** only.

M. MATERIAL VARIATION AGREEMENT

The **Insured** agrees to comply with regular project update meetings to monitor the progress of the project and determine any changes to the baselines shown in the schedule of the Material Variation Endorsement. Any changes to the baselines may trigger additional premium charges or changes in the policy terms and conditions as further outlined in the Material Variation Endorsement.

N. SERVICE OF SUIT

In the event of failure of the **Company** to pay any amount claimed to be due hereunder, the **Company**, at the request of the **Insured**, will submit to the jurisdiction of a court of competent jurisdiction within the United States. Nothing in this Condition constitutes or should be understood to constitute a waiver of the **Company's** rights to commence an action in any court of competent jurisdiction in the United States, to remove an action to a United States District Court or to seek a transfer of a case to another court as permitted by the laws of the United States or of any state in the United States. It is further agreed that service of process in such suit may be made upon Counsel, Legal Department, HDI Specialty Insurance Company, or his or her representative, and that in any suit instituted against the **Company** upon this policy, the **Company** will abide by the final decision of such court or of any appellate court in the event of an appeal.

Further, pursuant to any statute of any state, territory, or district of the United States which makes provision therefor, the **Company** hereby designates the Superintendent, Commissioner or Director of Insurance, or other officer specified for that purpose in the statute, or his or her successor or successors in office as its true and lawful attorney upon whom may be served any lawful process in any action, suit, or proceeding instituted by or on behalf of the **Insured** or any beneficiary hereunder arising out of this policy of insurance and hereby designates the above named Counsel as the person to whom the said officer is authorized to send such process or a true copy thereof.

O. ARBITRATION

Notwithstanding the Service of Suit Condition above, in the event of a disagreement as to the interpretation of this policy, it is mutually agreed that such dispute shall be submitted to binding arbitration before a panel of three (3) arbitrators, consisting of two (2) party-nominated (non-impartial) arbitrators and a third (impartial) arbitrator (hereinafter "umpire") as the sole and exclusive remedy.

The party desiring arbitration of a dispute shall notify the other party in writing, said notice including the name, address and occupation of the arbitrator nominated by the demanding party. The other party shall within 30 days following receipt of the demand, notify in writing the demanding party of the name, address and occupation of the arbitrator nominated by it. The two (2) arbitrators so selected shall, within 30 days of the appointment of the second arbitrator, select an umpire. If the arbitrators are unable to agree upon an umpire, each arbitrator shall submit to the other arbitrator a list of three (3) proposed individuals, from which list such arbitrator shall choose one (1) individual. The names of the two (2) individuals so chosen shall be subject to a draw, whereby the individual drawn shall serve as umpire.

The parties shall submit their cases to the panel by written and oral evidence at a hearing. Said hearings shall be held within thirty (30) days of the selection of the umpire unless otherwise agreed by a majority of the panel. The panel shall be relieved of all judicial formality, shall not be obligated to adhere to the strict rules of law or of evidence, shall seek to enforce the intent of the parties hereto and may refer to, but are not limited to, relevant legal principles. The decision of at least two (2) of the three (3) panel members shall be binding and final and not subject to appeal except for grounds of fraud or gross misconduct by the arbitrators. The award will be issued within 30 days of the close of the hearings. Each party shall bear the expenses of its designated arbitrator and shall jointly share with the other the expense of the umpire and of the arbitration proceeding.

The arbitration proceeding shall take place in Illinois or in the state shown in item 1 of the Declarations as the principal address of the Named Insured. The Named Insured shall act on behalf of each and every Insured in connection with any arbitration process under this section. The procedural rules applicable to this arbitration, shall, except as provided otherwise herein, be in accordance with the Commercial Rules of the American Arbitration Association.



**OTHER LIABILITY (PROFESSIONAL LIABILITY/E&O)
HS PI DS 1001 10 23**

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SCHEDULE OF FORMS AND ENDORSEMENTS

This endorsement modifies insurance provided under the following:

Excess Professional Indemnity Policy
Excess Specific Project Professional Indemnity Policy
Professional Indemnity Policy
Specific Project Professional Indemnity Policy

The following completes the section titled Forms and Endorsements in the Declarations.

Form Number	Form Edition	Form or Endorsement Name
HS IL SU 4003	01 20	Policy Jacket
HS PI DS 1000	01 23	Specific Project Professional Indemnity Policy Declarations
HS PI 1000	05 23	Specific Project Professional Indemnity Policy
HS PI DS 1001	10 23	Schedule of Forms and Endorsements
HS IL AM 4005	08 18	Service of Suit
HS PI AM 1001	04 23	Additional Named Insureds
HS PI AM 1002	04 23	Material Variation
HS PI AM 1003	04 23	Minimum Earned Premium
HS PI EX 1001	01 23	Exclusion of Certified Acts of Terrorism
IL AM 4001	05 23	Sanction Limitation and Exclusion Clause
IL P 001	01 04	U.S. Treasury Department's Office of Foreign Assets Control ("OFAC") Advisory Notice to Policyholders
PP3000	05 17	Privacy Notice
II 3005	09 22	Fraud Warning Notices

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SERVICE OF SUIT

This endorsement modifies this policy with the addition of the following:

Pursuant to any statute of any state, territory or district of the United States which makes provision therefore, the Company hereby designates the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the Statute, or his successors in office, as our true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the insured(s) or any beneficiary hereunder arising out of this contract of insurance, and hereby designate the below named as the person whom the said officer is authorized to mail process or a true copy thereof.

It is further agreed that service of process in such suit may be made upon Counsel, Legal Department, HDI Specialty Insurance Company, 161 N. Clark Street, 48th Floor, Chicago, IL 60601, or his or her representative, and that in any suit instituted against any one of them upon this policy, the Company will abide by the final decision of such Court or any Appellate Court in the event of an appeal.

NOTHING HEREIN SHALL VARY, ALTER, WAIVE, OR EXTEND ANY OF THE TERMS, PROVISIONS, REPRESENTATIONS, CONDITIONS OR AGREEMENTS OF THE POLICY OTHER THAN AS STATED ABOVE.

All other terms and conditions of this Policy remain unchanged



OTHER LIABILITY (PROFESSIONAL LIABILITY/E&O)
HS PI AM 1001 04 23

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL NAMED INSURED

This endorsement modifies insurance provided under the following:

Specific Project Professional Indemnity Policy

The following additional **Named Insureds** are added to the policy. The **First Named Insured** is the appointed and irrevocable agent for all **Insureds**, including for the purpose of receipt of any notice of cancellation, notice of nonrenewal (if applicable), and the payment of any premium or deductible or the return of any premium under this policy.

SCHEDULE OF ADDITIONAL NAMED INSUREDS
Michael Baker International (Civil) Walter P Moore – Structural Alvine – (MEP / Fire Protection) VTC - Baggage System Design WJE – Code / Life Safety AirProjects – Concessions Planner Henderson Engineers – IT / Special Systems Jones Worley Design – Signature and Wayfinding
All subconsultants under contract with First Named Insured and or scheduled Additional Named Insureds



OTHER LIABILITY (PROFESSIONAL LIABILITY/E&O)
HS PI AM 1002 04 23

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MATERIAL VARIATION

This endorsement modifies insurance provided under the following:

Specific Project Professional Indemnity Policy

In consideration of the payment of the policy premium, it is hereby understood and agreed that the following is added to Section I. **INSURING AGREEMENTS, G. FIRST NAMED INSURED**:

The **First Named Insured** shall have the obligation to report to the **Company** the status of the baselines listed in Table 1 on page 2 of this endorsement on a regular basis during the **Policy Period** and the Extended Reporting Period. Should any such material change occur with respect to any of the baselines, the **First Named Insured** shall have the obligation to report same to the **Company** promptly and in no event later than sixty (60) days of actual notice of such change.

In the event of the occurrence of any such material change, the **Company** and the **First Named Insured** shall have the opportunity for consultation to identify the change and the **Company** at its reasonable discretion may decide to do some or all of the following:

- (a) effect changes in coverage exclusively relating to the material change (in the judgement of the **Company**); and/or
- (b) charge additional premium.

None of the changes in coverage will impact the Limits of Liability. In the event of a disagreement with the **Company's** decision, notice of which disagreement must be given to the **Company** within thirty (30) days of receipt of the decision, the **First Named Insured** may request expedited non-binding mediation in the State of Illinois before a mutually acceptable mediator or, failing such agreement within 30 days' notice of disagreement, one appointed by the American Arbitration Association.

Failure of the **First Named Insured** to comply with this provision shall be considered a material breach of this policy and may result in cancellation of this policy by the **Company** in accordance with the terms and conditions of this policy. Should cancellation result as respects a material breach of this policy the **Company** will provide written notice at least sixty (60) days before cancellation is to be effective.

Table 1.		
A. Project Parameters	Baseline	Material Variation
Project Type or Character	The Terminal Modernization Program (TMP), includes a terminal renovation and expansion. To accomplish this program, a new Central Utility Plant (CUP) and Enabling projects need to occur. The extent of the Enabling and CUP phase of work includes: The CUP is a new facility outside of the existing terminal and moves / updates the primary systems that support the existing terminal and concourse	Material change in type and character of project
Funding Source	Burbank-Glendale-Pasadena Airport Authority	Loss of in funding for any portion of the project as scheduled
Project Estimate for Hard Construction Costs	\$70,000,000	
Project Estimated Professional Fees	\$9,350,000	Increase in estimated fees by more than 5% over the baseline estimate.
Final completion date for each proposed project within the program		Any delay in any critical path milestones that result in an extension of any such milestones for a period greater than (3) months.
B. Project Structure	Baseline	Material Variation
Description of owner and control of project	Burbank-Glendale-Pasadena Airport Authority	Any change in ownership
Description of contractual relationships of all prime design architects and engineering entities, and Project Manager under written Contract with Design/Builder (or Owner) who are insured under the Policy	Holder, Pankow, Tec – A Joint Venture has hired Corgan Associates, Inc.	Any change in principal parties under contract with Owner or Contractor
Project Delivery Method	Contractor Led Design/Build	Any change in project delivery method



OTHER LIABILITY (PROFESSIONAL LIABILITY/E&O)
HS PI AM 1003 04 23

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MINIMUM EARNED PREMIUM

This endorsement modifies insurance provided under the following:

Specific Project Professional Indemnity Policy

In consideration of the premium for this policy, it is hereby understood and agreed that section **V. CONDITIONS, G. Cancellation** is deleted and replaced by the following:

G. CANCELLATION

Except as provided in this condition, this policy shall not be cancelable by either the **Named Insured** or the **Company**.

This policy may be canceled by the **Company** for one or more of the following reasons:

1. non-payment of premium by the **First Named Insured**;
2. non-payment by the **First Named Insured** to the **Company** of any amount within the **Self-Insured Retention** that was advanced by the **Company**;
3. material breach of any provision of this policy.

If the policy is canceled by the **Company**, notice of cancellation will be written notice to the **First Named Insured**. The **Company** will provide written notice at least thirty (30) days before cancellation is to be effective. The premium is 100% fully earned at inception date of coverage.

The mailing of any notice of cancellation to the last known address of the **First Named Insured** shall be sufficient proof of notice.

The effective date of cancellation terminates the **Policy Period** and Extended Reporting Period.



OTHER LIABILITY (PROFESSIONAL LIABILITY/E&O)
HS PI EX 1001 01 23

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION OF CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

Specific Project Professional Indemnity Policy
Excess Specific Project Professional Indemnity Policy

1. If this endorsement is attached to the Excess Specific Project Professional Indemnity Policy, any endorsement addressing acts of terrorism (however defined) in any **Underlying Policy** does not apply to the Excess Specific Project Professional Indemnity Policy.
2. The following provisions addressing acts of terrorism apply with respect to this policy:
 - A. The following exclusion is added:

This insurance does not apply to:

TERRORISM

"Injury or damage" arising, directly or indirectly, out of a "certified act of terrorism".
 - B. The following definition is added:

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

 - a. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
 - b. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
 - c. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for "injury or damage" that is otherwise excluded under this Coverage Part.



THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SANCTION LIMITATION AND EXCLUSION CLAUSE

The Company shall not be deemed to provide cover and the Company shall not be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose the Company to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

HDI GLOBAL INSURANCE COMPANY HDI SPECIALTY INSURANCE COMPANY

PRIVACY NOTICE

We value your business and your trust in HDI. The privacy and confidentiality of your personal information is among our top priorities. This explains our practices and procedures for securing your personal information before, during and after your relationship with us. We will provide one copy of this Privacy Statement with each policy we issue. Additional copies of this statement are available upon request. Thank you for choosing HDI for your insurance needs.

How We Protect Your Information

We understand the importance of securing your personal information. We have physical, electronic and procedural safeguards in place to protect your nonpublic personal data in compliance with applicable state federal laws. We restrict employee access to customer information only to those who have a business reason to know, in order to provide our products and services to you.

What Personal Information We Collect About You

We collect nonpublic personal information about you from the following sources, only as our business needs require:

- Information received on applications and other forms – whether in writing, in person, by phone, electronically or by other means -such as names, addresses and employment information.
- Information about your transactions with us, our affiliates, or others associated with our business relationship, and information we receive from insurance agents, consumer reporting agencies, investigators connected with claims adjusting, state motor vehicle departments, inspection services, insurance support organizations or other sources as permitted or required by law.
- Information we receive in medical records or from medical professionals.
- Information otherwise obtained in the claims adjustment process, including litigation.

What Personal Information We Disclose About You

We do not disclose any of our customers' or other persons' nonpublic personal information to anyone, except as permitted or required by law. Permitted disclosures include information to process transactions on your behalf, and information about you or about participants, beneficiaries or claimants under your insurance policy in the normal course of business.

FRAUD WARNING NOTICES

Pursuant to statutory requirements, we are required to inform you of the specific fraud warning notice that is required on all applications for insurance. Please note that the state of New York requires a signature on the fraud warning.

For all states not listed below, the following fraud warning notice applies:	
Fraud Warning Notice: Any person who knowingly and with intent to defraud any insurance company or another person files an application for insurance or statement of claim containing any materially false information, or conceals, for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent act, which may subject the person to criminal and civil penalties.	
State Fraud Warning Notices	
Alabama	Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to restitution, fines, or confinement in prison, or any combination thereof.
Arkansas District of Columbia Louisiana Rhode Island West Virginia	Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or knowingly presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.
California	For your protection California law requires the following to appear on this form: Any person who knowingly presents false or fraudulent information to obtain or amend insurance coverage or to make a claim for the payment of a loss is guilty of a crime and may be subject to fines and confinement in state prison.
Colorado	It is unlawful to knowingly provide false, incomplete, or misleading facts or information to an insurance company for the purpose of defrauding or attempting to defraud the company. Penalties may include imprisonment, fines, denial of insurance and civil damages. Any insurance company or agent of an insurance company who knowingly provides false, incomplete, or misleading facts or information to a policyholder or claimant for the purpose of defrauding or attempting to defraud the policyholder or claimant with regard to a settlement or award payable for insurance proceeds shall be reported to the Colorado Division of Insurance within the Department of Regulatory Agencies.
Florida	Any person who knowingly and with intent to injure, defraud, or deceive any insurer files a statement of claim containing any false, incomplete, or misleading information is guilty of a felony of the third degree.
Kentucky	Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance containing any materially false information or conceals, for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime.

Maine	It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties may include imprisonment, fines or denial of insurance benefits.
Maryland	Any person who knowingly or willfully presents a false or fraudulent claim for payment of a loss or benefit or who knowingly or willfully presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.
New Jersey	Any person who includes any false or misleading information on an application for an insurance policy is subject to criminal and civil penalties.
New Mexico	ANY PERSON WHO KNOWINGLY PRESENTS A FALSE OR FRAUDULENT CLAIM FOR PAYMENT OF A LOSS OR BENEFIT OR KNOWINGLY PRESENTS FALSE INFORMATION IN AN APPLICATION FOR INSURANCE IS GUILTY OF A CRIME AND MAY BE SUBJECT TO CIVIL FINES AND CRIMINAL PENALTIES.
Ohio	Any person who, with intent to defraud or knowing that he is facilitating a fraud against an insurer, submits an application or files a claim containing a false or deceptive statement is guilty of insurance fraud.
Oklahoma	WARNING: Any person who knowingly, and with intent to injure, defraud or deceive any insurer, makes any claim for the proceeds of an insurance policy containing any false, incomplete or misleading information is guilty of a felony.
Oregon	Fire: This entire policy shall be void if, whether before or after a loss, the insured has willfully concealed or misrepresented any material fact or circumstance concerning this insurance or the subject thereof, or the interest of the insured therein, or in case of any fraud or false swearing by the insured relating thereto.
Pennsylvania	General: Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information or conceals for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime and subjects such person to criminal and civil penalties. Auto: Any person who knowingly and with intent to injure or defraud any insurer files an application or claim containing any false, incomplete or misleading information shall, upon conviction, be subject to imprisonment for up to seven years and the payment of a fine of up to \$15,000."
Tennessee Virginia Washington	It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties include imprisonment, fines and denial of insurance benefits.

This page only applies to the state of New York.

New York	General: Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime, and shall also be subject to a civil penalty not to exceed five thousand dollars and the stated value of the claim for each such violation. Auto: Any person who knowingly makes or knowingly assists, abets, solicits or conspires with another to make a false report of the theft, destruction, damage or conversion of any motor vehicle to a law enforcement agency, the department of motor vehicles or an insurance company, commits a fraudulent insurance act, which is a crime, and shall also be subject to a civil penalty not to exceed five thousand dollars and the value of the subject motor vehicle or stated claim for each violation. Fire: Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance containing any false information, or conceals for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime. The proposed insured affirms that the foregoing information is true and agrees that these applications shall constitute a part of any policy issued whether attached or not and that any willful concealment or misrepresentation of a material fact or circumstances shall be grounds to rescind the insurance policy.
SIGNED BY THE RISK MANAGER, IN-HOUSE GENERAL COUNSEL OR SENIOR OFFICER OF THE INSURED ACTING AS THE AUTHORIZED REPRESENTATIVE FOR PURCHASING INSURANCE.	
SIGNATURE	
NAME & TITLE	
DATE	